

The Claremont City Council held a meeting on Wednesday, November 9, 2016, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

Ward II Councilor Scott Pope
Assistant Mayor Victor Bergeron
Mayor Charlene Lovett
At-Large Councilor Allen Damren
At-Large Councilor Bruce Temple
Ward III Councilor Nicholas Koloski

Absent:

Ward I Councilor Carolyn Towle
At-Large Councilor Keith Raymond
At-Large Councilor John Simonds

Also present were:

Guy Santagate, City Manager
Jane Taylor, City Solicitor

AGENDA CHANGES

None

REPORT OF THE SECRETARY

A motion was made by Mr. Pope and seconded by Mr. Damren to accept the minutes of the October 12, 2016, City Council meeting as amended.

Mayor Lovett said on page 1 that she didn't call the meeting to order, Assistant Mayor Bergeron did. On the top of page 4, change NH Conservation Commission to NH Association of Conservation Districts.

Voice vote: motion carried 5-0 with 1 abstain (Mayor Lovett abstained as she was not at that meeting).

A motion was made by Mr. Damren and seconded by Mr. Bergeron to accept the minutes of the October 26, 2016, City Council meeting.

Voice vote: motion carried 6-0.

MAYOR'S NOTES

World Pancreatic Cancer Day Proclamation

Lorraine Potvin, volunteer for Pancreatic Cancer Action Network, said that pancreatic cancer is one of the deadliest cancers; it is difficult to diagnose. Mayor Lovett presented the Pancreatic Cancer Day Proclamation to Lorraine Potvin.

Mayor Lovett said the City Manager Search Screening Committee will meet to interview the 6 candidates that they selected from the 12 submittals provided by MRI. Once interviews are complete, the committee will then recommend 3 candidates to the Council.

Mayor Lovett read a portion of a letter from Franklin and Northfield asking Claremont to help resolve a school funding issue that has to do with the elimination of education stabilization grants.

Mr. Santagate said the state continues to balance its budget on the backs of property owners. In the last eight years, the City has had to raise almost \$1 million in added property taxes due to downshifting from the state. He talked about the Claremont Lawsuit and how it was unconstitutional that education be funded by property taxes. He said property taxes are the worst tax and he favors other tax methods. He said the state continuously avoids the Court ruling.

Mayor Lovett suggested Council draft a letter stating its support.

Mayor Lovett said there will be a joint meeting of the Council and School Board on November 15 at 6 p.m. at the Sugar River Valley Regional Technical Center.

Mayor Lovett said at yesterday's election that 79% of registered Claremont voters came out to vote.

Mayor Lovett said Friday, November 11 is Veterans Day. The American Legion will have a Veterans Day event in Broad Street Park on November 11th at 11 a.m. This past Saturday, The Jazz Ambassadors were at the Claremont Opera House.

Mr. Bergeron congratulated the boys soccer team even though they didn't win. He congratulated the football team which will be heading to a tournament on Saturday.

CITY MANAGER'S REPORT

Mr. Santagate gave a brief overview of his City Manager's Report. He said Public Works held a Free Tire Day on Saturday, November 5th; 1,040 tires were turned in. It costs the City \$1.75 each to dispose of them. Public Works continued the leaf pick up program. The LED light program will improve lighting while reducing cost.

Mr. Santagate said that the new Jewell Trucking facility is up and running. He said the footprint of North Country Smokehouse is in and the facility will be huge.

Mr. Santagate said Hallowesta had lots of participation. It brings a lot of people downtown which is one of the major objectives.

Mr. Santagate will include a “dashboard” each month in his reports. 61 building permits in October. 543 building permits for 2016 to date. City’s assessed value before exemptions - \$697,908,724 and net assessed value - \$694,138,674.

Mr. Koloski said the City extended the agreement with Naughton and Son Recycling. He asked if the Council could get a copy of the agreement.

Mayor Lovett asked Mr. Santagate to add the top 10 employers to the dashboard. Mr. Santagate said he will do that and will include fund balance.

Mayor Lovett said crosswalk safety was brought up at the October 12th meeting. She asked if it had been brought up to the Traffic Advisory Committee. Mr. Santagate said they had not met since that meeting. It will be brought up at the next meeting.

Mayor Lovett asked about the merger of Moody Park and the City property. Mr. Santagate said that has been done.

Mayor Lovett asked about the tree cutting policy that was in Public Works’ report. Scott Sweet, Public Works Director, said they are putting together a policy for trees that are in the City’s right-of-way.

APPOINTMENT TO BOARDS AND COMMITTEES

Claremont Development Authority

A motion was made by Mr. Damren and seconded by Mr. Pope to re-appoint Keith Raymond to seat 1 of the Claremont Development Authority.

Voice vote: motion carried 6-0.

A motion was made by Mr. Bergeron and seconded by Mr. Damren to re-appoint Thomas Rock to seat 6 of the Claremont Development Authority.

Voice vote: motion carried 6-0.

Parks and Recreation Commission

A motion was made by Mr. Koloski and seconded by Mr. Bergeron to appoint William Carpenter to seat 3 of the Parks and Recreation Commission.

Voice vote: motion carried 6-0.

A motion was made by Mr. Pope and seconded by Mr. Damren to appoint Les St. Pierre to seat 5 of the Parks and Recreation Commission.

Voice vote: motion carried 6-0.

A motion was made by Mr. Koloski and seconded by Mr. Pope to appoint Justin Provost to Alternate Seat 2-Ward II of the Parks and Recreation Commission.

Voice vote: motion carried 6-0.

A motion was made by Mr. Pope and seconded by Mr. Damren to appoint Sheila Rook to Alternate Seat 3-At Large of the Parks and Recreation Commission.

Voice vote: motion carried 6-0.

CITIZEN'S FORUM

Bernie Folta, Ward 3, said within the last week a Claremont citizen died of pancreatic cancer, Gerome Goggin, who was a good friend of his. Mr. Folta said he would like the website to indicate when information changes. He suggested that Planning and Development's report include dates when the projects were done and to indicate what information is new on the dashboard.

OLD BUSINESS

Elderly Tax Exemption Discussion

Mayor Lovett said that some residents have made requests to change the Elderly Tax Exemption. She explained this is a request to lower the tax responsibility of some elderly people and shift the tax responsibility to other segments of the population.

Mr. Pope said the last change to the Elderly Tax Exemption was made in 2006.

Marlene Jordan, Assessing Technician, said applications for the exemption are taken January 1 to April 15. It is based on income. The Assessing Department has until July 1 to respond to the applicants.

Mr. Santagate said the Social Security changes for 2017 may be minimal, but they will put some residents over the income limit.

Ms. Jordan said Assessing conducted an Elderly Exemption Survey. It consisted of 5 questions. The survey was available on the City's website; it was sent out in an e-blast; e-Ticker News added a link to the survey on its website; paper copies were distributed to the Senior Center, Library, Visitors Center, Central Collections and Assessing. Twenty-seven responses were

received from people age 65 or older. Of the 27 responses, 9 said they would qualify if the income limits were \$21,700 single, \$29,600 married; and the asset limit was \$74,300. Of the 27 responses, 18 said they would qualify if the income limits were \$27,500 single, \$37,600 married; and the asset limit was \$75,000.

Mr. Santagate said when changing the parameters, it's only a guess who would qualify. When you give exemptions, it raises everyone else's taxes.

Mr. Bergeron cautioned the Council to be careful. The City just put a freeze on unnecessary spending and the bus company is asking for \$30,000. He thinks since there has been no increase in the Elderly Exemption limits since 2006, Council needs to do something. He said he'll have a hard time approving the \$30,000 for the bus route. He said this community spends a lot of money on social services.

Mr. Pope said he feels it needs to be reviewed. If the limits are not increased, some people will lose the exemption. Having seniors living in their own homes saves money.

Mayor Lovett said it is the consensus of the Council to move forward and bring this back to the December 14 meeting.

Mr. Pope would like to know how many exemptions were granted in 2006 versus today.

Ordinance 550 Cemetery Policy - First Reading

The purpose of this proposal is to revise the municipal cemetery rules and regulations, as recommended by the City Council Ad Hoc Policy Committee.

Enactment of this Ordinance will update and clarify the municipal cemetery rules and regulations.

A motion was made by Mr. Bergeron and seconded by Mr. Damren to adopt Ordinance 550 Cemetery Policy on first reading.

Mr. Bergeron read the explanation of proposed action.

Ms. Taylor said this is a substitute ordinance, based on input from the public and the Committee.

Mr. Bergeron said a meeting was held regarding changes to the ordinance. One change was to the hours. The cemetery will close at 9 p.m.

Scott Sweet, Public Works Director, was at the meeting and he agreed with the changes.

Mr. Bergeron asked about grandfathered items. Mr. Sweet said whatever is there now is grandfathered, but if it is removed, and is not allowed according to the ordinance, it cannot be put back.

Ms. Taylor said the grandfather date will be October 12, 2016.

Mr. Koloski asked about the statement that “No person shall enter any cemetery with a loaded truck...” He said there is no definition of a loaded truck.

Ms. Taylor said this can be sent back for revision or it can go forward and then be revised later.

Roll call vote: motion carried 5-1, with Mr. Koloski voting no.

NEW BUSINESS

Lower Hydro Discussion

Nancy Merrill, Planning and Development Director, said that Bob King is interested in purchasing the existing hydro dam off Lafayette Street and his question is whether or not the Council would grant him a PILOT (Payment in Lieu of Taxes).

Bob King said that he has been developing small hydro for 33 years. He’s from Keene. He works with Tim Taylor. They do all the repairs to the hydros. For this project, they will have to rebuild both turbines. There is an existing power purchase agreement with Green Mountain Power (GMP) which is good for 8 years.

Mr. King said John Webster (current owner) has not produced a kilowatt hour since 2012. Mr. King believes the City has not received any tax revenue from it since then. Mr. King’s proposal is 2.5% for 4 years, graduating to 3.5% and finishing with 4.5%. The proposal is for 10 years. He said he has a couple of hydro sites in Winchester and they are both paying 2.5%.

Mayor Lovett asked why the PILOT is being requested to go to 2026 when the agreement with GMP ends in 8 years. Mr. King said the federal license expires in 2028. He said he is trying to stagger things. He said the payment would be on the gross revenue from the sale of energy and capacity.

Ms. Taylor said she needs additional information before she can give a recommendation. Under statute any PILOT given to this type of utility would have to be given to the other two utilities if they requested it. Currently the other two don’t have PILOTS and they pay full tax revenue.

Mr. Santagate asked about estimated payments. Mr. King said \$11,000/year at 2.5% up to \$20,000/year at 4.5%, assuming average rainfall.

Ms. Taylor said statute requires a public hearing before approval. Also, a PILOT for longer than 5 years will have to show financial need or other good cause.

Mayor Lovett asked if December 14 was too late. Mr. King said the purchase and sale closes December 31st. He would like Council to vote on this on December 14th, if possible.

Mr. Pope asked for a synopsis of the lawsuit issues. Ms. Taylor will supply Council with a copy of the Supreme Court Ruling.

Mayor Lovett asked to put this on the December 14 agenda.

Ordinance 551 Water Use Restrictions – First Reading

The purpose of this proposal is to permit restrictions on outdoor water use in the event of a declared drought or other water supply emergency in order to conserve and maintain adequate reserves of water supply in the interest of public health and safety. Under the proposal various types of water use restrictions may be implemented after public notice. The proposal also includes exemptions for certain types of water uses.

Enactment of this Ordinance will protect the public health, safety and welfare by permitting restriction on outdoor water use as may be necessary to conserve and maintain adequate reserves of the City's water supplies in the event of a declared drought or other water supply emergency.

A motion was made by Mr. Damren and seconded by Mr. Bergeron to adopt Ordinance 551 Water Use Restrictions on first reading.

Mr. Damren read the explanation of proposed action.

Mr. Sweet said this gives the City the ability to do mandatory water restrictions, if needed. He pointed out the Sugar River normally runs 250 cu ft/second, but now is around 70 cu ft/second.

Roll call vote: motion carried 6-0.

Resolution 2017-17 Accept and Expend \$1,445.90 from the Go for Food Color Walk/Run – Public Hearing

On July 23, 2016, the Claremont Parks & Recreation Department sponsored a "Color Run for Food" (the "Event") to raise funds for the Claremont Parks & Recreation Scholarship Fund and the Claremont Soup Kitchen. The Event raised net revenue after expenses of \$1,445.90, which funds the City would like to expend for the intended purpose of the Event and distribute these funds, 50% to the Scholarship Fund and 50% to the Soup Kitchen.

A motion was made by Mr. Damren and seconded by Mr. Bergeron to adopt Resolution 2017-17 Accept and Expend \$1,445.90 from the Go for Food Color Walk/Run.

Mr. Damren read the resolution into the record.

Mark Brislin, Parks and Recreation Director, said this year there were 180 registered runners. Odelay Bernash spearheads this event and deserves a big thank you.

Mr. Koloski asked about buying thank you cards for the Council to send out. Mayor Lovett suggested putting a letter of thanks on Council letterhead. Council agreed. She'll send the letter to Ms. Bernash.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote: motion carried 6-0.

COMMITTEE REPORTS

Mr. Pope said the Historic District Commission (HDC) has started its part of the Master Plan.

Mayor Lovett asked about the rating increase for the Oscar Brown building. Mr. Pope said it is a historic rating and the building has been increased up to a 3, out of a scale of 0 to 3, which is highly important.

Mayor Lovett asked who is responsible for the investment in that building.

Mr. Santagate said there were four state agencies involved in the funding. Brown Block Development was under the Main Street Project and they raised private money for the project, but it was so complicated, the City took it over and it took a while to get the funding. The building was sold for \$500,000 and it is currently fully occupied.

Mayor Lovett asked about byproducts of the increased historic rating. Mr. Santagate said that could help with future grants. Mr. Pope suggested talking with Dave Messier who's been on the HDC for a long time.

Mr. Pope talked about the old Reliable Paper building (currently Ink Factory) and the old Esersky's building (going to be a chocolate factory) going through renovations and those are positive things in the historic area.

Mayor Lovett asked regarding the Conservation Commission and the Rail Trail how the Judy Wells property issue is going. Ms. Taylor said there are contractor issues.

Gary Dickerman, Conservation Commission member, said Ms. Wells was at the last Conservation Commission meeting and she is working on finding a contractor. The Commission has given her permission to do the work.

Mayor Lovett will report at the December 14th Council meeting regarding the 2016 Amtrak ridership which has improved 16.9% for the year. There was a 350-person ridership increase bringing the total up to almost 2,500 for the year which puts it on track to be a medium station.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Lovett said there would be a joint meeting of Council and School Board next Tuesday starting at 6 p.m.

Mayor Lovett said November 18th has been earmarked to do interviews of the City Manager finalists from screening committee. She wants to start at 5 p.m.

There was a discussion that the Screening Committee may present 2 to 4 candidates to the Council. Mayor Lovett anticipates there will be 3. Messrs. Temple and Koloski made it clear they wanted a minimum of 3 candidates.

There was a consensus of the Council to interview the candidates for City Manager on Friday, November 18, 5 p.m. in Council Chambers.

There was a discussion about whether or not to do the interviews in public or non-public and the consensus of the Council was that the meeting should be held in non-public session. Ms. Taylor said the actual selection would have to be done in public.

Mayor Lovett said a meet and greet would be scheduled for a different day, after the interviews.

Mr. Temple asked if Councilors would get a packet of information about the candidates. Mayor Lovett said Mr. Gould anticipates sending Councilors submittals of the Screening Committee's top candidates this Friday, so that Council has six days to review the entire package (resumes, essay question responses, etc.). Those packages will be non-public.

Mr. Pope asked that MRI include questions that can and cannot be asked.

Mayor Lovett asked if the Council wanted to set aside some money for possible travel costs. Some of the applications were received from a long distance away. The budget is \$16,000 and after paying the contract with MRI and the advertising expenses, she estimates there will be \$500 left over.

Mr. Damren thinks some money should be allocated for travel.

Mr. Bergeron said if interviews are done at night, candidates would have to be put up in a hotel overnight. He would prefer to have the individuals present, not on Skype.

Mayor Lovett said Mr. Gould said it is routine on your final interview that the applicant would be present, not on Skype.

There was a consensus of the Council to set aside money for travel expenses, if necessary.

Bernie Folta, Ward 3, asked if the finalists from the Screening Committee will be publicly announced. Mayor Lovett sent a text message to Alan Gould to ask him. Mr. Folta asked if the finalists are identified, if the Council will consider having interviews open so the public can sit in. Councilors said no.

Mr. Pope said regarding the hydro dam that he would like as much information as possible by the next meeting. He would like to give an answer to Mr. King at that meeting. Mr. Bergeron said

the Council needs to have proper information before making a decision. Mr. Pope would like to move on this, if possible.

Mr. Temple asked about the purchase and sale agreement that Mr. King had said he had. Mayor Lovett said the purchase and sale agreement is contingent on a lot of things.

Ms. Taylor said the decision would be whether Council wants to enter into a letter of intent, not the PILOT; that would be later. A letter of intent is a contract.

Mayor Lovett said she will share Mr. King's resume with the Council.

Ms. Taylor said Mr. King has to either own or be the lessee responsible for paying the taxes before he could enter into a PILOT.

Mr. Koloski said the most recent PILOT has expired; he asked if the taxes are unpaid. Ms. Taylor said she didn't know.

Mayor Lovett said she heard back from Mr. Gould and the names of the finalists will not be public if the interviews are held in non-public session.

Mr. Bergeron will bring back as much information from the conference that he can.

Mr. Koloski asked for information regarding Current Use. Mr. Santagate said the City is doing research on that.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 8:58 p.m., a motion was made by Mr. Damren and seconded by Mr. Bergeron to adjourn.

Voice vote: motion carried 6-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council